

SKILL-BASED CONTEST PARTICIPATION AGREEMENT

ANNOTATED EXEMPLAR • PLACEHOLDER • SWITCHBOARD / CELLTOWER TOURNAMENT OPERATIONS

THIS DOCUMENT IS A PLACEHOLDER. It was drafted with the assistance of an artificial intelligence (Anthropic's Claude) as a formatting and issue-spotting exemplar only. It is not legal advice, it creates no attorney–client relationship, and it has not been reviewed by any attorney. Skill-contest, prize-promotion, and gaming law varies materially by state and country and changes frequently. Before any entry fee, stake, or other consideration is collected, this entire document must be replaced by an agreement drafted or reviewed by licensed counsel competent in gaming and promotions law in every jurisdiction where the contest is offered. The SWITCHBOARD operator console enforces a corresponding software gate: v0 is expressly not for real money.

RECITALS

WHEREAS, Operator conducts contests of skill in which participants attempt to meet or exceed a stated performance threshold in the videogame known as CELLTOWER; WHEREAS, the outcome of each attempt is determined predominantly by the participant's skill, dexterity, and judgment, and each attempt is memorialized in a cryptographically verifiable performance record (the "Stream"); and WHEREAS, Participant desires to enter such contest subject to the terms herein; NOW, THEREFORE, in consideration of the mutual covenants herein, the parties agree as follows.

1. DEFINITIONS

"**Contest**" means the skill contest identified in Exhibit A. "**Entry Fee**" means the consideration, if any, stated in Exhibit A. "**Prize Pool**" means the escrowed amount available to a verified qualifying claim, computed per Exhibit A. "**Performance Instrument**" means a CELLTOWER v3.0 verification stream bearing the Contest's tournament identifier, bound by SHA-256 hash chain to the participant's identity, time of play (Green Minute), rules and scoring regime, and complete piece-placement record. "**Verification**" means independent replay of the Performance Instrument by the published validator, including canonical recomputation of the score. "**Claim Priority**" means the order of operator receipt as sequenced in the Operator's hash-chained ledger.

2. NATURE OF CONTEST; SKILL PREDOMINATES

The parties acknowledge that the Contest is a bona fide contest of skill: success depends on the participant's learned ability at piece placement, board management, and speed under fixed, published rules, and not on chance. The piece sequence is a deterministic function of a published seed; identical inputs produce identical outcomes; no element of the game is hidden from the participant. *[COUNSEL: confirm the contest satisfies the dominant-factor test or other controlling standard in each offered jurisdiction — e.g., the line of California authority applying the dominant factor doctrine in connection with Penal Code §§ 330 et seq.; any operation touching Nevada requires Gaming Control Board analysis before launch; several states apply stricter "any chance" or "material element" standards.]*

3. ELIGIBILITY; VOID WHERE PROHIBITED

Participant must be a natural person of at least eighteen (18) years of age (or twenty-one (21) where required), physically present in an eligible jurisdiction at time of play. The Contest is void where prohibited or restricted. *[COUNSEL: complete the jurisdictional exclusion schedule. States that have historically restricted fee-based skill contests or required registration/bonding for prize promotions warrant individual review — commonly flagged examples include Arizona, Arkansas, Connecticut, Delaware, Louisiana, Maryland, Montana, South Carolina, Tennessee, and Vermont, together with New York and Florida registration/bonding rules for certain promotions. This list is illustrative, not exhaustive, and must be re-verified at execution.]*

4. ENTRY; CONSIDERATION; ESCROW

Entry Fees and posted stakes are received by Operator and held in a segregated escrow ledger, published in hash-chained, append-only form. Rake is deducted from Entry Fees only, at the rate in Exhibit A, before pot accrual. *[COUNSEL: holding participant funds may constitute money transmission requiring state licensure (or exemption analysis) and may implicate trust-account, bonding, or prize-indemnity requirements; analyze before any funds are held overnight.]*

5. PRIZE; VERIFICATION; CLAIM PRIORITY

A claim qualifies if and only if the submitted Performance Instrument (a) verifies VALID under the published validator; (b) bears the Contest tournament identifier and required rules/scoring regime, each bound into the hash chain; (c) reflects a Green Minute within the Contest window; and (d) upon canonical recomputation, yields a score meeting or exceeding the threshold. Among multiple qualifying claims, Claim Priority governs. Operator's refusal of a claim must state the failed condition; the artifacts permit independent public audit of that determination.

6. TAXES; REPORTING; COMPLIANCE

Prizes are taxable to the recipient. Operator may require a completed IRS Form W-9 (or W-8 series) prior to payment and will issue Form 1099-MISC where prizes equal or exceed \$600 in a calendar year. Operator may delay or deny payment pending identity verification and sanctions/AML screening. *[COUNSEL: confirm current reporting thresholds, backup-withholding triggers, and any state analogs at execution.]*

7. PUBLICITY; DATA

Participant grants Operator a non-exclusive license to publish Participant's entered initials, score, and Performance Instrument for verification and promotion. Performance Instruments may embed coarse, participant-controlled geolocation; sentinel values denote non-disclosure. *[COUNSEL: align with applicable privacy statutes (e.g., CCPA/CPRA) and draft the participant disclosure accordingly.]*

8. LIMITATION OF LIABILITY; DISPUTES; GOVERNING LAW

EXCEPT WHERE PROHIBITED, OPERATOR'S AGGREGATE LIABILITY SHALL NOT EXCEED THE PRIZE POOL OF THE CONTEST GIVING RISE TO THE CLAIM. Any dispute not resolved informally shall be finally resolved by binding arbitration administered by the American Arbitration Association under its Consumer Arbitration Rules, on an individual basis only; the parties waive class proceedings to the extent permitted by law. *[COUNSEL: confirm arbitration and class-waiver enforceability and consumer notice formatting in each jurisdiction.]* This Agreement is governed by the law of the State of _____ without regard to conflicts principles; exclusive venue lies in _____ County.

9. SEVERABILITY; ENTIRE AGREEMENT

If any provision is held unenforceable, the remainder continues in effect. This Agreement, with Exhibit A and the published validator and ledger specifications it incorporates by reference, is the entire agreement of the parties concerning the Contest.

OPERATOR:

X _____

Name/Title:

Date:

PARTICIPANT:

X _____

Name:

Date:

EXHIBIT A — CONTRACT PARAMETERS (machine-readable; mirrors SWITCHBOARD POST)

Field	Value	Hash-bound?
Tournament ID (T=)	_____	YES — bound into H■ via aux section
Score threshold	_____	Recomputed canonically at Verification
Posted stake (seeds pot)	\$ _____	Ledger (hash-chained)
Entry fee / attempt	\$ _____	Ledger (hash-chained)
Rake (% of fees)	_____ %	Ledger (hash-chained)
Rules / scoring regime (rs)	!! (defaults)	YES — bound into H■
Green Minute window	_____ – _____	Eligibility gate; gm bound into H■
Jurisdiction(s)	_____	Contract term — counsel-controlled
Unclaimed-pot disposition	_____	[COUNSEL: refund / rollover / escheat]

COUNSEL REVIEW CHECKLIST (issues this exemplar spotted; not exhaustive)

- Skill-vs-chance standard per jurisdiction (dominant factor / material element / any chance); written predominance analysis on file.
- Entry-fee-as-consideration analysis; contest vs. sweepstakes vs. lottery taxonomy; "no purchase necessary" inapplicability rationale for bona fide skill contests.
- Money transmitter licensing or exemption for escrowed player funds; trust account and bonding requirements; prize-indemnity insurance.
- Registration/bonding regimes for prize promotions (e.g., NY, FL) where applicable.
- Nevada: no operation, marketing, or fund flow touching NV without Gaming Control Board analysis.
- Age and identity verification procedure; geolocation reliance limits (stream geofields are attested, not proven).
- Tax: W-9/W-8 intake, 1099-MISC issuance, backup withholding; state analogs.
- AML/sanctions screening proportional to volume; recordkeeping retention schedule.
- Privacy disclosures for published streams (initials, score, coarse location), CCPA/CPRA rights handling.
- Arbitration clause and class waiver enforceability; required consumer-notice formatting.
- Unclaimed pot disposition vs. state unclaimed-property (escheat) law.
- Advertising substantiation for any "win up to" or odds-adjacent claims by the barker/ticker.

PROVENANCE: generated by SWITCHBOARD v0 tooling with Anthropic Claude AI on June 12, 2026, as a placeholder demonstrating that the legal layer was designed for from day one. The software refuses real-money operation until this placeholder is replaced by executed, counsel-approved paper.